



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Jeanie Vetter, Parks and Greenway Planner
Subject: Grant of Access and Temporary Construction Easement on City Owned Property
Date: July 26, 2021

Background:

The item for consideration is a grant of access easement and temporary construction easement across City owned property. Tract U, Sweetgrass, 2nd Filing was dedicated to the City for public greenway purposes. The adjacent property owner to the south, Lots 100 and 200, Block 15, of Sweetgrass, 6th Filing require access to the site from the right-of-way along Murray Road.

The Governing Body review schedule is as follows:

- Introduction and Referral 07/26/2021
- Public Services Committee 08/02/2021
- Final Reading 08/09/2021

Attachments:

1. Grant of Access Easement
2. Easement Exhibit

Approved as to
form only:

MKD
Date: 3/14/21

GRANT OF ACCESS EASEMENT

KNOW ALL MEN BY THESE PRESENTS that, for and in consideration of the sum of one dollar (\$1.00) and other valuable consideration in hand paid, the receipt and adequacy of which is hereby acknowledged, the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as CITY or GRANTOR, owner in fee simple of Tract U, Sweetgrass, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (a designated Greenway Open Space Parcel), does hereby grant, remise, and relinquish unto Sweetgrass Land Co., LLC, its heirs, successors, and assignees, hereinafter referred to as GRANTEE, the non-exclusive right, privilege, authority, and easement for lands owned by GRANTOR, or in which GRANTOR has any interest, further described as follows:

ACCESS EASEMENT

A 60 foot wide access, utility, drainage, and public right-of-way easement to serve a portion of the NE1/4 of Section 16, Township 13 North, Range 66 West, of the 6th P.M., AKA "Parcel CC" Sweetgrass PUD, in the City of Cheyenne, Laramie County, Wyoming, said parcel to be known as Sweetgrass, 6th Filing, and containing 12.83 acres, more or less.

Said easement being more particularly described as extending 30 feet on either side of the following described centerline:

Beginning at a point on the North line of Block 15, Sweetgrass, 6th Filing (coincident with the South line of said Tract U) from which the Northeast corner of said Tract U bears S. 71°07'27" E., a distance of 639.14 feet; thence N. 22°29'21" E., a distance of 40.28 feet to the South right-of-way line of East Murray Road and said easement there terminates.

The boundary lines of said easement shall be lengthened or shortened to maintain a continuous 60 foot wide access easement from said North line of Block 15 to said South right-of-way line of East Murray Road.

Said easement containing 2,401 square feet, more or less.

See Exhibit A, attached hereto and incorporated herein by reference.

TEMPORARY CONSTRUCTION EASEMENT

A 20 foot wide temporary construction easement of those lands being a portion of the NE1/4 of Section 16, Township 13 North, Range 66 West, of the 6th P.M., AKA "Parcel CC" Sweetgrass PUD, in the City of Cheyenne, Laramie County, Wyoming, said parcel to be known as Sweetgrass, 6th Filing, and containing 12.83 acres, more or less.

Said easement being more particularly described as follows:

A 20 foot wide temporary construction easement on each side of the access easement described above to accommodate construction of properly permitted utilities and roadway improvements within the access easement. Said temporary construction easement is more particularly described as extending 50 feet on each side of the above-described centerline. Said temporary construction easement to automatically extinguishes (sunset) thirty (30) calendar days following

jurisdictional acceptance of any properly permitted improvements.

The boundary lines of said temporary construction easement shall be lengthened or shortened to maintain a continuous 20 foot wide temporary construction easement on each side of the access easement, extending from the North line of Block 15 to the South line of East Murray Road right-of-way.

GRANTOR grants this access easement in anticipation of the replat of Lots 100 and 200, Sweetgrass, 6th Filing, for which access is required across lands owned by GRANTOR.

GRANTOR further grants to the GRANTEE the right to enter upon said land and the right to use and maintain any and all structures, appurtenances, and fixtures along said access.

GRANTOR further grants to the GRANTEE the right to ingress and egress from the above-described land and covenant that it shall, in no way, hinder or prevent the proper and reasonable use and enjoyment of said property for access.

GRANTOR shall be responsible for construction and maintenance of improvements within the access easement and improvements shall be constructed to the specifications as defined and adopted by the City.

In the event of an excavation in the above-described access easement by the GRANTOR, the GRANTOR shall be responsible to backfill and grade such right-of-way to the specifications as defined and adopted by the City, and any costs for said restoration of improvements shall be borne by the GRANTEE, its successors and assigns. However, the GRANTOR shall not be required to restore any improvements, such as pavement or vegetation. Any costs for restoration beyond backfill and grading shall be borne by the GRANTEE, its successors and assigns.

The rights granted herein shall forever be subject to the rights of GRANTOR, its assigns or lessees to explore for, develop, and extract any and all minerals or other subsurface resources beneath this access easement. If required for mineral exploration, development, or extraction, the GRANTEE shall, upon written notice from the GRANTOR, remove or relocate the above-described assets at its own expense.

Upon abandonment or discontinuance of use of the access easement for the purposes specified above, all of GRANTEE'S rights under this grant of access easement shall revert to GRANTOR or its successors or assigns, the same as if this grant had never been made. Should this access easement be abandoned by the GRANTEE, or GRANTEE'S successors or assigns, the above-described tract of land shall be returned to a condition satisfactory to the landowner.

The access easement may be transferred; however, no transfer may increase the burden on the servient estate in any manner. Any transfer of ownership of this access easement, or any change of name or mailing address of the owner of this access easement, shall be reported to the GRANTOR within thirty (30) days of the transfer or change.

The GRANTEE releases and agrees to save and hold harmless GRANTOR, its officers, agents, and employees, from any causes of action or claims or demands arising out of this grant of access easement, except to the extent any such cause of action or claims or demands are the result of the negligence or willful misconduct of the GRANTOR, its agents, or employees.

Included in this grant shall be the right to lay, construct, maintain, operate, alter, repair, remove, change the size of, and replace at any time the assets laid by GRANTEE.

This grant is a covenant running with the land and shall be binding upon the parties hereto, their heirs, devisees, representatives, successors, and assigns; and the rights, privileges and authorities herein granted shall be assignable together or separately and in whole or in part.

DATED this _____ day of _____, 2021.

FOR GRANTOR:

Patrick Collins, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

This instrument was acknowledged before me, the undersigned officer, on this _____ day of _____, 2021, by Patrick Collins, Mayor of the City of Cheyenne, Wyoming, and Kristina F. Jones, City Clerk for the City of Cheyenne, Wyoming.

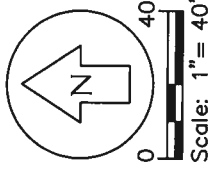
Witness my hand and official seal.

(SEAL)

Notary Public

My commission expires: _____

EXHIBIT A



LEGEND

- SET 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 5/8"x24" REBAR
- EXISTING PUBLIC GREENWAY (TRACT U)
- 60' EASEMENT

LOT 3
BLOCK 8
SWEETGRASS, 2nd FILING

**EAST MURRAY ROAD
(100' R/W)**

60' ACCESS, UTILITY, DRAINAGE, AND
PUBLIC RIGHT-OF-WAY EASEMENT

TRACT U,
SWEETGRASS,
2nd FILING
(PUBLIC GREENWAY)

LOT 100
SWEETGRASS,
6th FILING

60' DRAINAGE
INGRESS/EGRESS
& EMERGENCY
ACCESS EASEMENT
(PLATTED SWEETGRASS, 6th FILING)

LOT 200
SWEETGRASS,
6th FILING

TRACT U,
SWEETGRASS,
2nd FILING
(PUBLIC GREENWAY)

UNPLATTED

EASEMENT DESCRIPTION

A 60' ACCESS, UTILITY, DRAINAGE, AND PUBLIC RIGHT-OF-WAY EASEMENT across TRACT U, SWEETGRASS, 2nd FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING; said easement being more particularly described as extending 30 feet each side of the following described centerline:

Beginning at a point on the North line of Block 15, Sweetgrass, 6th Filing (coincident with the South line of said Tract U), from which the northeast corner of said Tract U bears S.71°07'27"E., a distance of 639.14 feet; thence N.22°29'21"E., a distance of 40.28 feet to the South Right-of-Way line of East Murray Road and said easement there terminates.

The boundary lines of said easement shall be lengthened or shortened to maintain a continuous 60'-wide easement from said North line Block 15 to said south R/W line of East Murray Road. Said easement containing 2,401 square feet, more or less.

BASIS OF BEARINGS: WYOMING STATE PLANE COORDINATES,
EAST ZONE NAD83--2011. GRID DISTANCES.
SITE COMBINATION FACTOR = 0.999665203.

EASEMENT EXHIBIT FOR

60' ACCESS, UTILITY, DRAINAGE, AND
PUBLIC RIGHT-OF-WAY (& CONSTRUCTION)
EASEMENT(S) ACROSS
TRACT U, SWEETGRASS, 2nd FILING,
CITY OF CHEYENNE, LARAMIE COUNTY,
WYOMING

PREPARED NOVEMBER 2020



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
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756 CILBERT ST. WHEATLAND, WY. 82201 • (307) 328-8789
www.steelsurvey.com • info@steelsurvey.com

CONSTRUCTION EASEMENT DESCRIPTION

A 20' TEMPORARY CONSTRUCTION EASEMENT each side of the permanent easement described above; to accommodate construction of properly permitted utilities and roadway improvements within the above-described Right-of-Way Easement. Said construction easement to automatically extinguish (sunset) thirty (30) calendar days following jurisdictional acceptance of any properly permitted improvements, said construction easement more particularly described as extending 60 feet each side of the above-described centerline.

The boundary lines of said easement shall be lengthened or shortened to maintain a continuous 20'-wide easement each side of the ACCESS, UTILITY, DRAINAGE AND PUBLIC RIGHT-OF-WAY EASEMENT, extending from the North line of Block 15 to the South line of East Murray Road Right-of-Way

REVISED: 11/23/2020
\\2016 DWG\16175 SWEETGRASS\6TH FILING - CC\16175D_SG6TH_FINAL.DWG